

FixProve / vFault Legal Diligence

Executive finding

FixProve's two founder drafts are a sound issue-spotting base but are not launch-ready. They accurately identify most of the material risks; their weakness is that they stop at questions where an operative policy and paid-service contract must state concrete answers. The largest blockers are the processor/controller split, an Article 28 customer DPA, point-of-sale consumer disclosures, specific retention periods, a defensible liability architecture, and verified vendor/transfer schedules.

The publicly observable vFault legal surface is materially weaker. Its homepage advertises Free, Pro (£19/month), Team (£49/month), and Business (£99/month) plans and links to an account page, yet the reviewed homepage and Microsoft marketplace listing expose no identifiable privacy notice, service terms, refund/cancellation policy, sales terms, or contracting-entity notice. The marketplace says the extension sends function names to a remote API. The repository identifies Ian Fraser / Exceed Web Services as builder; Companies House records EXCEED WEB SERVICES LTD (no. 15127870) as dissolved on 3 March 2026. This creates a threshold uncertainty over who contracts, receives payment, controls personal data, and bears liability. Absence was confirmed on the reviewed public surfaces; it is not proof that no undiscoverable checkout-only text exists.

Bottom line: vFault's visible omissions are not a template to copy. FixProve can establish a substantially stronger trust position by publishing a complete legal stack before charging, keeping claims technically verifiable, and presenting the seller/controller identity at every acquisition surface.

Scope and reliability

Materials reviewed: the three supplied PDFs dated 28 July 2026; vFault's live/indexed homepage, pricing claims, Microsoft Visual Studio Marketplace listing, public GitHub repository, and the named operator's Companies House record; primary EU/Danish rules and regulator guidance; and Cloudflare's current DPA and Workers KV documentation. Legal conclusions are decision-support for Danish counsel, not a legal opinion. A live checkout could not be completed and no private Cloudflare account terms, configuration, or customer contracts were inspected.

Decision register

Issue	FixProve position	vFault public position	Decision
Seller / controller identity	CVR and founder named, but physical address incomplete	No visible legal identity; named former Ltd is dissolved	Fix exact legal name and address before launch
Privacy transparency	Detailed draft; not operative	No visible product privacy notice	Publish layered privacy notice before collecting/charging
Customer code data	Relayed expressions disclosed; roles unresolved	Marketplace says function names are sent to remote API	Data-flow map + controller/processor schedule + DPA
Paid sales	Explicitly blocked; no pricing in draft	Prices and quotas publicly advertised	Build compliant clickwrap and durable confirmation
Retention	Current indefinite storage admitted	Not disclosed	Implement TTL/deletion first; then state periods
Liability	Blanket placeholder exclusion	No visible product terms	Separate B2B and consumer treatment; cap only after counsel review

vFault public legal-surface audit

Confirmed commercial and data facts

Observation	Evidence	Risk
Paid recurring tiers	Homepage: Pro £19/mo, Team £49/mo, Business £99/mo; quotas and developer counts	Triggers seller identity, pre-contract, renewal, cancellation, tax and consumer-information obligations
Remote processing	Marketplace: on save, vFault sends function names to its API; API base URL is exceedweb.pythonanywhere.com	Requires an intelligible data notice, vendor/transfer analysis, retention/security explanation, and role allocation
No visible legal links	Reviewed homepage has navigation to features, pricing, docs, status, account and GitHub, but no legal/privacy/refund link; marketplace listing likewise exposes none	Users cannot readily identify rules, controller, lawful bases, rights, cancellation or remedies
Unclear contracting entity	Repository and marketplace name Ian Fraser / Exceed Web Services; Companies House says EXCEED WEB SERVICES LTD dissolved 3 March 2026	Payment counterparty, data controller and liability bearer are unclear
Strong absolute claims	Homepage states 0% false positives, 100% hallucination catch rate, 'impossible' for verifier to hallucinate	Evidence and scope qualifications should be preserved; absolute marketing claims can create consumer and misrepresentation exposure

What cannot responsibly be concluded

No claim is made that vFault has no terms anywhere, violates a specific law, or is taking completed payments. The public evidence establishes only that paid plans and an account surface are advertised while the reviewed public acquisition surfaces do not disclose the relevant legal documents or seller identity. Checkout-only terms, processor agreements, internal retention rules, tax registration, or a successor sole-trader entity may exist but were not observable.

Benchmark implication for FixProve

The useful comparison is operational, not rhetorical: FixProve should make the legal counterparty, data flow, limits of verification, pricing and renewal, cancellation, withdrawal rights, and complaint channels visible before acceptance. That creates a verifiable contrast without alleging misconduct by a competitor.

Answers to the lawyer's 22 questions

1. Processor or controller for the GitHub App

Assessment — High confidence. Likely a split role. For customer-selected repository content and findings processed solely to post requested annotations, FixProve is likely a processor and the installing organisation the controller. FixProve remains an independent controller for account, billing, security, abuse prevention and its own service analytics. Labels follow actual purposes and means, not the contract heading. An Article 28 DPA should be executable before the first organisational customer sends personal data.

Required action. Prepare a short DPA with processing details, confidentiality, security, deletion/return, assistance, audits, breach notice, subprocessors (Cloudflare, GitHub where applicable), transfer safeguards, and change/objection mechanics. Put the role split in both DPA and privacy notice.

2. Relayed code fragments

Assessment — High confidence. Transit is still processing even without persistence. Processor duties still apply: documented instructions, confidentiality, security, records where required, breach handling, subprocessor governance and deletion. Logs, error traces, APM and backups must be checked because 'not stored' is false if payloads leak into them.

Required action. Adopt payload-redaction/no-body-logging controls, short memory-only handling, documented deletion, security tests, incident procedures and a customer obligation not to submit unlawful or unnecessary personal/special-category data.

3. Liability limitation that actually holds

Assessment — Medium confidence. The disclaimer that FixProve is an aid and not a correctness guarantee is valuable because it defines scope, but it cannot cure misleading performance claims or mandatory duties. A categorical exclusion of all indirect/consequential loss is more defensible in negotiated B2B terms than in consumer terms and should not purport to exclude fraud, wilful misconduct, gross negligence where non-excludable, death/personal injury, confidentiality/data protection duties, IP indemnities, or mandatory statutory remedies.

Required action. Have Danish counsel settle a B2B clause: direct-loss-only rule, listed excluded heads, aggregate cap, carve-outs, mitigation, causation and customer testing duties. Keep consumer language separate and plain.

4. Liability cap by customer type

Assessment — Medium confidence. There is no safe universal statutory percentage. A commercially common B2B architecture is fees paid/payable in the preceding 12 months, sometimes with a higher security/confidentiality sub-cap; for a free service a modest fixed cap may be used, but reasonableness remains fact-specific. Consumer caps that strip mandatory conformity, refund or damages rights risk being unfair and non-binding.

Required action. Ask counsel to approve actual numbers against foreseeable loss, insurance and plan price. Use: B2B negotiated cap; free-user fixed cap only if defensible; consumer carve-out preserving all mandatory rights.

5. Personal liability and entity form

Assessment — High confidence. Terms can allocate and cap contractual risk but cannot turn a sole proprietorship into a separate liability shield, prevent regulator claims, or protect against every tort/statutory claim. There is no legal revenue threshold at which an ApS becomes mandatory; the trigger is risk exposure, contract size, security/data sensitivity, enterprise procurement and insurance economics.

Required action. Before material paid or enterprise processing, obtain professional indemnity/cyber quotations and set a board-style conversion trigger: maximum contract exposure, customer security requirements, annual recurring revenue and personal asset risk. Counsel/accountant should decide timing.

6. Before the payment surface goes live

Assessment — High confidence. At minimum: operative seller identity and contact/address; service and plan description; total price including VAT/taxes or calculation method; billing interval; automatic renewal and cancellation method; contract duration/minimum commitment; delivery timing; complaint handling; functionality/compatibility; statutory conformity rights; withdrawal information and model form where applicable; privacy notice; clickwrap evidence; durable post-contract confirmation; invoicing/VAT treatment; and accessible support. The order button must unambiguously indicate an obligation to pay.

Required action. Create a launch gate checklist and test checkout as EU consumer and business. Do not rely on a generic 'By continuing' clause. Preserve version, timestamp, checkbox text, policy hashes and emailed receipt/terms.

7. Cloudflare and international transfer

Assessment — High confidence. Cloudflare's current DPA forms part of self-serve/enterprise agreements and incorporates SCCs; Cloudflare also states EU-US DPF coverage where applicable. Default Workers KV is globally distributed. Current documentation says jurisdiction-restricted durable storage is private beta and caching/access can still occur outside the chosen jurisdiction. Therefore SCC/DPF language does not eliminate the need to describe transfers and assess the actual services/configuration.

Required action. Archive the exact Cloudflare Self-Serve Agreement/DPA version accepted by the account, subprocessor list and transfer impact assessment. Confirm namespace jurisdiction and logs. Do not claim EU-only storage unless configuration and caching/processing support it.

8. Hosting request logs

Assessment — High confidence. Yes, disclose relevant hosting/security processing even if FixProve does not directly access the logs. A processor's handling on the controller's behalf remains within the processing chain; Cloudflare may also act as an independent controller for limited operational purposes under its own terms.

Required action. Add IP address, request metadata, security/abuse purpose, lawful basis, recipient/provider, approximate retention or criterion, and transfer safeguards. Reconcile wording with Cloudflare's actual product-specific roles.

9. Cookie/ePrivacy position

Assessment — Medium-high confidence. If the site truly writes/reads no cookies or equivalent terminal-equipment storage, the consent mechanism for such technologies is generally not triggered. Server-side request logs are principally a GDPR transparency/security matter rather than, by themselves, terminal-equipment storage. The conclusion must be re-tested when CDN challenges, bot tools, account login, payment, embedded media or third-party scripts are enabled.

Required action. Publish a concise 'no non-essential cookies/local storage currently used' statement; run recurring technical scans. Add consent management before introducing non-essential client-side technologies.

10. Controller identification format

Assessment — High confidence. Use the trading identity and natural person together: 'FixProve v/Yehor Kaliberda, CVR 46646223' plus a usable physical business/postal address and email. GDPR Article 13 requires identity and contact details; Danish distance-sale rules also require physical-address disclosures to consumers.

Required action. Insert the registered/service address consistently in privacy, terms, checkout, invoices and email confirmations; verify it against CVR records.

11. Data Protection Officer

Assessment — High confidence. On the stated facts, Article 37 does not require a DPO: FixProve is not a public authority; its core activities do not involve large-scale regular/systematic monitoring or large-scale special-category/criminal-data processing. The conclusion changes with scale or product design, not merely revenue.

Required action. Record a one-page DPO non-designation assessment and review annually or after material telemetry, monitoring, enterprise or sensitive-data changes.

12. Datatilsynet wording

Assessment — High confidence. The policy must state the right to lodge a complaint with a supervisory authority. Full postal details are not expressly mandated by Article 13, but giving Datatilsynet's name and current website/contact route is clearer and reduces friction.

Required action. Use a short complaint paragraph and link to Datatilsynet's current complaint/contact page; retain the right to complain in the user's habitual-residence/work/infringement authority where relevant.

13. Lawful basis for GitHub App data

Assessment — High confidence. For an individual contracting directly, Article 6(1)(b) can cover processing objectively necessary to deliver the installed service, but it should not be stretched to organisation employees who are not contract

parties. Legitimate interests may fit account/security/correlation processing if the three-part purpose, necessity and balancing test is passed. Processor handling follows the customer's lawful basis and instructions rather than FixProve inventing a separate basis for the same processing.

Required action. Create a role-and-basis table per data flow. If relying on Article 6(1)(f), document an LIA before processing and state the specific interest in the notice.

14. Waitlist and Marketing Practices Act §10

Assessment — High confidence. A launch announcement is direct marketing/branding. Prior consent is required. 'Launch news, no spam' indicates purpose but is too informal to be the sole compliance record unless the form clearly identifies FixProve, email channel, expected subject matter, voluntariness and easy withdrawal, and consent is provable.

Required action. Use an unticked explicit consent statement, log wording/version/time/source, confirm by email where appropriate, include unsubscribe in every marketing message, and suppress withdrawn addresses. Do not bundle product terms and marketing consent.

15. Timestamp disclosure

Assessment — High confidence. Disclose the timestamp or at least the category 'sign-up and consent record (including date/time and source)'. It is personal data and important to explain the proof-of-consent purpose. Saying only 'email address' is incomplete.

Required action. Retain the consent evidence needed to defend marketing compliance, even if the active marketing address is suppressed; distinguish active-list retention from legal proof retention.

16. Defensible retention periods

Assessment — High confidence. Criteria are legally permitted, but specific operational periods are clearer. 'Until launch or abandonment' needs a maximum backstop; 'shortly after' is too vague. Correlation data should expire automatically soon after completion, subject to narrowly separated security logs. Consent suppression/proof may require longer retention than the marketing list itself.

Required action. Set and implement numbers before publication: e.g., correlation state in hours/days, security logs in a justified short period, waitlist deletion at launch plus a defined grace period or a fixed long-stop. Counsel should confirm limitation-based retention for consent evidence. Test TTL and deletion jobs.

17. MIT licence coexistence

Assessment — High confidence. The structural separation is correct: MIT governs distributed source; hosted-service terms govern accounts, API and operations. Avoid conditions that purport to revoke, narrow or charge for already granted MIT rights. Trademark, hosted data, API access and service abuse rules can remain separate.

Required action. State expressly that termination of hosted access does not terminate MIT rights in copies already obtained, and that service marks/branding are not licensed except as stated.

18. Suspension right

Assessment — High confidence. 'Operational harm' alone is vague. Immediate suspension is defensible for security, illegality, material abuse or urgent system risk, but ordinary breaches should use notice and a reasonable cure opportunity. Consumer terms must be transparent and proportionate; a unilateral unrestricted right risks unfairness.

Required action. Define triggers, scope, notice, cure, emergency action, restoration and appeal/contact route. Limit suspension to what is necessary and address prepaid fees where FixProve suspends without customer breach.

19. Availability

Assessment — High confidence. Paid digital services carry contractual and statutory conformity obligations even without a numerical SLA. 'No SLA' avoids a specific uptime promise, but does not permit arbitrary non-performance or override advertised features, reasonable expectations, support commitments or consumer remedies for non-conformity.

Required action. Define service scope, maintenance, dependencies and status communications. Keep uptime claims measurable; offer enterprise SLAs only by order form. Preserve mandatory consumer remedies.

20. Changing the terms

Assessment — High confidence. Passive continued use is weak for materially adverse changes to an existing paid fixed term and cannot rewrite already-earned consumer rights. Prospective changes at renewal are stronger with clear advance notice and a right to cancel without penalty. Security/legal changes may need faster effect if narrowly justified.

Required action. Version every agreement; send durable notice; specify notice period; explain material changes; allow cancellation before effect; obtain fresh assent when the change materially alters price, data use, liability or core service during a term.

21. Governing law and venue

Assessment — High confidence. Danish law and Danish courts are a sensible baseline for B2B. A specific Aarhus venue may be useful for businesses, subject to procedural validity. Consumer terms must preserve mandatory protections and jurisdiction rights; a clause cannot force EU consumers to abandon protections or permissible home courts.

Required action. Use separate wording: B2B exclusive venue only after Danish counsel confirms the proper court; consumer clause expressly preserves mandatory law and jurisdiction. Avoid presenting venue as absolute.

22. 'No telemetry' as a representation

Assessment — High confidence. Yes, a public privacy statement is an operative factual representation and may inform consent, contractual expectations and marketing-law analysis. That is desirable if true, but it must be versioned and scoped. Future opt-in telemetry requires notice, a lawful basis, data mapping and—where applicable—valid consent before activation; a later policy edit cannot retroactively authorise collection.

Required action. Say: 'The current CLI version does not send source code, telemetry or analytics to FixProve. If a future optional feature changes this, it will be off by default and described before activation.' Align README, product, code and policy; add a release-gate test.

Launch architecture

Gate	Owner	Evidence required	Release rule
G1 Data map	Engineering + privacy	Fields, endpoints, logs, vendors, purposes, roles, locations, retention	No unknown production flow
G2 Processor package	Legal	Customer DPA, TOMs, subprocessor schedule, SCC/transfer references	Executable before org install
G3 Privacy publication	Founder + legal	Controller identity/address, all data categories, bases, recipients, transfers, retention, rights	Matches production
G4 Paid terms	Legal + commercial	B2B/consumer treatment, scope, billing, cancellation, changes, suspension, warranty, liability	Approved versioned clickwrap
G5 Checkout	Product + finance	VAT/tax, total price, renewal, withdrawal flow, order wording, durable confirmation	End-to-end test passed
G6 Reliability claims	Engineering	Test protocol, scope, date, limitations for all performance claims	No unqualified absolutes
G7 Risk transfer	Founder	ApS decision, PI/cyber cover, incident response, cap-to-insurance alignment	Personal exposure accepted explicitly

Minimum document set before first paid customer

1) Public Privacy Notice; 2) Hosted Service Terms with a consumer schedule or B2B-only eligibility; 3) Subscription/checkout disclosures and cancellation/refund/withdrawal procedure; 4) Article 28 DPA with TOMs and subprocessors; 5) internal records of processing, LIA(s), retention schedule, vendor register and incident plan; 6) clickwrap/consent evidence register; 7) open-source licence and trademark boundary statement. An enterprise order form and SLA may follow when actually sold, but should not be implied by the public tier.

Recommended positioning

Do not market the contrast as 'vFault is illegal' or 'FixProve is legally compliant.' Use verifiable trust claims: local analysis by default; exactly what transits; defined deletion; published subprocessors; customer DPA available; versioned terms; seller identity visible; and benchmark claims tied to a dated test set. This is stronger, safer and easier to prove.

Draft-specific redlines

Current draft language	Problem	Direction
'personally the data controller for everything'	Overbroad; customer repository processing may be processor activity	State role by processing purpose
Art 6(1)(b) 'and/or' Art 6(1)(f)	Legal bases are not interchangeable placeholders	Assign one basis per controller purpose; document LIA when used
Records currently persist indefinitely	Accurate but incompatible with minimisation if no purpose	Implement deletion/TTL before operative notice
'No network calls' in CLI	Strong factual promise that may age	Version-scope and release-test it
Blanket indirect/consequential-loss exclusion	Uncalibrated to B2B/B2C, mandatory rights and insurance	Separate regimes, cap and carve-outs
'Continuing to use means accepting'	Weak for material paid changes	Advance durable notice, cancellation right, fresh assent where needed
Paid terms will be shown later	Cannot support current checkout	Complete sales schedule before enabling payments
Aarhus only, no full address	Insufficient clarity for controller/seller contact	Add verified physical address consistently

Counsel decisions still required

Danish counsel should make or confirm: the precise B2B liability cap and exclusions; consumer carve-outs; classification of the paid SaaS as digital service/content for the exact withdrawal flow; venue wording; whether the intended market will be B2B-only at launch; retention for consent evidence and security logs; the controller/processor analysis against production architecture; and whether an ApS/insurance is required before particular customer or revenue exposures. These are not safely resolved by copying competitor language.

Sources and evidence notes

FixProve internal documents. [LAWYER-QUESTION-LIST.pdf](#); [TERMS-OF-SERVICE-DRAFT.pdf](#); [PRIVACY-POLICY-DRAFT.pdf](#), all supplied for review and expressly marked drafts not in force, dated 28 July 2026.

vFault homepage. <https://vfault.com/> — product claims, navigation, pricing and plan descriptions; reviewed 9 September 2026.

Visual Studio Marketplace. <https://marketplace.visualstudio.com/items?itemName=exceed-web-services.vfault> — remote API behavior, supported features, builder identity and links.

vFault GitHub. <https://github.com/Digitalcdj/vfault> — public software scope, MIT licence, API endpoint and builder identity.

Companies House. <https://find-and-update.company-information.service.gov.uk/company/15127870> — EXCEED WEB SERVICES LTD status, number, address, incorporation and dissolution dates.

GDPR. <https://eur-lex.europa.eu/eli/reg/2016/679/oj> — Articles 5, 6, 12–14, 28, 30, 32–33, 37 and 44–49.

EDPB roles. https://www.edpb.europa.eu/documents/guideline/guidelines-072020-on-the-concepts-of-controller-and-processor-in-the-gdpr_en

EDPB legitimate interests.
https://www.edpb.europa.eu/public-consultations/guidelines-12024-on-processing-of-personal-data-based-on-article-61f-gdpr_en

Danish controller obligations. <https://www.datatilsynet.dk/english/fundamental-concepts/what-are-your-obligations/obligations-of-the-controller>

Danish Consumer Contracts Act. <https://www.retsinformation.dk/eli/lta/2025/1184> — current consolidated text reviewed, including digital-service definitions and pre-contract duties.

EU Consumer Rights Directive. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:02011L0083-20220528>

EU Unfair Contract Terms Directive. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:31993L0013>

Danish Contracts Act. <https://www.retsinformation.dk/eli/lta/2016/193> — including sections 36 and 38c.

Danish marketing authority.
<https://forbrugerombudsmanden.dk/find-sager/sager-efter-markedsfoeringsloven/spam/mail-med-nyhedsbrev-om-fagnyheder-var-markedsfoering>
— branding/newsletter email treated as marketing under section 10.

Cloudflare DPA. <https://www.cloudflare.com/en-gb/cloudflare-customer-dpa/> — version 6.4, effective 3 April 2026; SCC and self-serve/enterprise framework.

Cloudflare GDPR FAQ. <https://www.cloudflare.com/trust-hub/gdpr/> — SCC/DPF and self-serve incorporation explanation.

Workers KV. <https://developers.cloudflare.com/kv/> and <https://developers.cloudflare.com/kv/concepts/kv-namespaces/> — global replication and jurisdiction controls.

Evidence caveat: Search indexing and page accessibility can change. The vFault finding is framed as a public-surface audit, not proof of absence across every private or checkout-only page. Counsel should repeat the checkout capture immediately before relying on the comparison.